

REAL ESTATE PURCHASE AND SALE AGREEMENT

3535 St. Johns Road, Lima, Ohio 45804

THIS REAL ESTATE PURCHASE AND SALE AGREEMENT ("**Agreement**") is made and entered into effective as of July 27, 2026 (the "**Effective Date**") by and between **Heidelberg Distributing RE, LLC**, a Delaware limited liability company ("**Seller**"), and **Nickolas, LLC**, an Ohio limited liability company ("**Buyer**").

In consideration of the mutual promises set forth herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto, intending to be legally bound, agree as follows:

1. **Terms and Definitions.** The terms listed below shall have the respective meaning given them as set forth adjacent to each term.

(a) "**Brokers**" shall mean, collectively, KBC Advisors - Ohio, LLC, c/o Joe Kimener, acting as Seller's agent, and Dye Real Estate and Land Co. c/o Garret Hatton, acting as Buyer's agent.

(b) "**Closing**" shall mean the consummation of the transaction contemplated herein. The Closing shall occur on the date that is fifteen (15) days after the last day of the Due Diligence Period (as defined herein), unless Buyer and Seller mutually agree in writing to close earlier. The date of Closing is sometimes hereinafter referred to as the "**Closing Date**." Neither party will need to be present at Closing, it being anticipated that the parties will deliver all Closing documents and deliverables in escrow to the Escrow Agent prior to the date of Closing. For the avoidance of doubt, Buyer acknowledges that TIME IS OF THE ESSENCE with respect to Buyer's obligation to consummate the transactions contemplated hereunder on the Closing Date.

(c) "**Due Diligence Period**" shall mean the period beginning upon the Effective Date and expiring at 6:00 p.m. EST on the date that is sixty (60) days after the Effective Date. Prior to the expiration of the Due Diligence Period and upon payment of additional earnest money as provided in this Agreement, Purchaser shall have the option extend the Due Diligence Period for a period not to exceed thirty (30) days, such option shall be deemed to have been exercised upon written notice delivered to Seller on or before the date which the original Due Diligence Period is set to expire and if extended, the additional thirty (30) day period shall be included in the "Due Diligence Period."

(d) "**Earnest Money**" shall mean Fifty Thousand Dollars (\$50,000.00). The Earnest Money shall be deposited by Buyer in escrow with Escrow Agent within three (3) business days after the Effective Date, to be applied as part payment of the Purchase Price at the time the sale is closed, or disbursed as agreed upon in accordance with the terms of this Agreement. Purchaser may extend the diligence period by an additional thirty (30) days for an additional non-refundable deposit of Twenty-Five Thousand Dollars (\$25,000.00) due on or before the expiration date of the initial Due Diligence Period, which shall be credited towards to the Purchase Price upon Closing. If Buyer fails to deliver the Earnest Money to Escrow Agent within the time period specified above, Seller may, at its option, deliver written notice to Escrow Agent, terminating this Agreement and, in such event, neither party shall have any further rights, obligations or liabilities hereunder except to the extent that any right, obligation or liability set forth herein expressly survives termination of this Agreement. TIME IS OF THE ESSENCE for the delivery of Earnest Money under this Agreement. Buyer hereby acknowledges and agrees that any Earnest Money held by Escrow Agent does not and shall not constitute property of the estate of Buyer within the meaning of section 541 of title 11 of the United States Code, or substantially similar provisions of state law (the "**Bankruptcy Code**"). Buyer hereby acknowledges and agrees that (i) the proper giving of notice by Seller to release the Earnest Money as provided hereunder and/or (ii) the proper release of the Earnest Money to Seller shall not

be a violation of any provision of the Bankruptcy Code, including, without limitation, section 362 of the Bankruptcy Code, or require the approval of any court with jurisdiction over any case in which Buyer or any affiliate of Buyer is a debtor. Buyer hereby waives any provision of the Bankruptcy Code necessary to invoke the foregoing, including, without limitation, sections 105 and 362, and waives any right to defend against any motion for relief from the automatic stay that may be filed by Seller.

(e) **“Escrow Agent”**. Old Republic National Title Insurance Company, Attn: David Lawrence (also referred to herein as the **“Title Agent”**) shall serve as Escrow Agent for the transaction contemplated in this Agreement. This Agreement shall serve as escrow instructions, and Escrow Agent may attach to this Agreement one of Escrow Agent's printed forms of conditions of acceptance of escrow; provided, however, that if any inconsistency between conditions of acceptance and this Agreement exists, this Agreement shall prevail. The parties agree that the Escrow Agent shall be responsible for (i) organizing the issuance of the Title Commitment and Title Policy (each as hereinafter defined), (ii) preparation of the closing statement, and (iii) collection and disbursement of the funds in accordance with this Agreement.

(f) **“Property”** shall mean, collectively: (i) that certain real property consisting of approximately 7.42 acres located at 3535 St. Johns Road, Lima, Ohio 45804, being Alen County Auditor Parcel ID Numbers 47-1700-03-006.000 and 47-1700-03-005.003, as more particularly described on Exhibit A attached hereto and incorporated herein, together with all rights and interests appurtenant thereto, including all of Seller's right, title, and interest (if any) in and to adjacent streets, alleys, rights-of-way, and any adjacent strips and gores of real estate (the **“Real Property”**) together with the buildings, facilities and other improvements located thereon (collectively, the **“Improvements”**); (ii) all right, title and interest of Seller (if any) in and to all air and subsurface rights appurtenant to the Real Property; (iii) all right, title and interest of Seller (if any) in and to the machinery, lighting, electrical, mechanical, plumbing and heating, ventilation, and air conditioning systems used in connection with the Real Property and the Improvements, and all carpeting, draperies, appliances and other fixtures and equipment attached or appurtenant to the Real Property; (iv) all right, title and interest of Seller to any unpaid award, if any, for any taking or condemnation of the Property or any portion thereof, or any damage to the Property or the Improvements or any portion thereof; and (v) all easements, licenses, rights and appurtenances relating to any of the foregoing. Notwithstanding the foregoing to the contrary, the Property shall not include those items listed on Exhibit B attached hereto and incorporated herein by reference (the **“Excluded Property”**). Seller and Buyer expressly acknowledge and agree that Seller shall be permitted to remove the Excluded Property from the Property prior to Closing (as defined herein), without any reduction in the Purchase Price (defined below).

(g) **“Purchase Price”** shall mean Two Million Two Hundred Thousand Dollars (\$2,200,000.00).

(h) Seller and Buyer's Notice addresses:

(i) **“Buyer's Notice Address”** shall be as follows, except as same may be changed pursuant to Section 15 hereof:

Nickolas, LLC
2000 Industrial Dr
Findlay, OH 45840
Attn: Brian Nichols
Telephone: 419-434-3100
Email: brian@nickolas.com

Copy to:

McDonald Hopkins LLC
600 Superior Ave., Ste. 2100
Cleveland, Ohio 44114
Attn: Alec Davidson
Email: adavidson@mcdonaldhopkins.com

(ii) **“Seller’s Notice Address”** shall be as follows, except as same may be changed pursuant to Section 15 hereof:

Dayton Heidelberg Distributing Co., LLC
c/o Heidelberg Distributing Company
3601 Dryden Road
Dayton, Ohio 45439
Attn: Chris Rammel, President
Telephone: (937) 222-8692
Email: Chris. Rammel@HeidelbergDistributing.com

2. **Purchase and Sale of the Property.** Subject to the terms of this Agreement, Seller agrees to sell to Buyer, and Buyer agrees to purchase from Seller, the Property for the Purchase Price.

3. **Payment of Purchase Price.** The Purchase Price to be paid by Buyer to Seller shall be paid by wire transfer of immediately available funds in the amount of the Purchase Price plus or minus prorations, credits and adjustments as provided in Section 4 and elsewhere in this Agreement to Escrow Agent, at the time of Closing, or as otherwise agreed to between Buyer and Seller.

4. **Proration of Expenses and Payment of Costs and Recording Fees.**

(a) Real estate taxes, rollback taxes, personal property taxes, water and sewer use charges, and any other charges and assessments constituting a lien on the Property (collectively, **“Taxes and Assessments”**) shall be apportioned between Seller and Buyer at the Closing, as of 11:59 p.m. of the day immediately preceding the Closing Date on the basis of the actual number of days of the month that shall have elapsed as of the Closing Date and based upon the actual number of days in the month and a 365 day year, and the net aggregate amount thereof either shall be paid by Buyer to Seller or credited to Buyer towards the Purchase Price, as the case may be, at the Closing. If ad valorem taxes with respect to the Property for the year of Closing are not known or cannot be reasonably estimated, such taxes shall be prorated based on actual ad valorem taxes paid by Seller for the year prior to Closing. Such tax prorations shall be final as of Closing. Any additional ad valorem taxes relating to the year of Closing or prior years arising out of a change in the use of the Property or a change in ownership shall be assumed by Buyer effective as of Closing and paid by Buyer when due and payable, and Buyer shall indemnify Seller from and against any and all such additional ad valorem taxes, which indemnification obligation shall survive the Closing.

(b) At Closing, Seller shall pay or be charged with the following costs and expenses in connection with this transaction:

(i) The cost of preparation of the Deed (as defined below) and the other documents to be delivered by Seller;

(ii) Any endorsements issued in connection with the Title Policy that Seller elects to purchase to cover title issues, if any;

(iii) Any and all transfer taxes and conveyance fees on the sale and transfer of the Property; and

(iv) Brokers' commission payments (for sales commissions earned), in accordance with Section 23 of this Agreement;

(c) At Closing, Buyer shall pay or be charged with the following costs and expenses in connection with this transaction:

(i) The cost of preparation of the documents to be delivered by Buyer;

(ii) 100% of all title policy premiums for the Title Policy, including search costs and for any endorsements issued in connection with such policy (including a survey endorsement), other than endorsements that Seller elects to purchase to cover title issues, if any;

(iii) All fees relating to recording the Deed for the Property;

(iv) All costs and expenses in connection with Buyer's financing, including appraisal, points, commitment fees and the like and costs for the filing of all documents necessary to complete such financing and related documentary stamp tax and intangibles tax; and

(v) All costs and expenses for Buyer's survey, Phase I environmental study, any estimate of rollback taxes, and all due diligence investigations, including legal costs and third party report costs.

(d) Each party shall pay its own legal fees incidental to the negotiation, execution and delivery of this Agreement and the consummation of the transactions contemplated hereby.

(e) Seller and Buyer each shall pay one-half of all reasonable escrow fees charged by Escrow Agent.

5. **Title.** At Closing, Seller agrees to convey to Buyer fee simple title to the Property by limited warranty deed, subject to the Permitted Exceptions (as hereinafter defined).

6. **Examination of Property.** Seller and Buyer hereby agree as follows:

(a) Within five (5) business days after the Effective Date of this Agreement, Seller will provide to Buyer for its review, any and all documentation relating to the Property, including but not limited to leases, site & building plans, surveys, drawings, title commitment, tax, zoning, operating expense, and environment documents (the "**Due Diligence Materials**"), to the extent such Due Diligence Materials are in Seller's possession or control. Seller makes no representation or warranty as to the completeness or accuracy of such materials, and shall not be obligated to obtain or create any additional materials not currently in its possession.

(b) Buyer shall order a title insurance commitment (the "**Title Commitment**") for the Real Property from Escrow Agent (in its capacity as the title company, the "**Title Company**"), within five (5) days of the Effective Date of this Agreement. All matters shown in the Title Commitment ("**Title Matters**") with respect to (1) which Buyer fails to object, whether prior to the expiration of the Due Diligence Period or otherwise, or (2) which Buyer timely and appropriately objects but Seller elects (or is deemed to elect) not to cure pursuant to the terms of this Agreement, in each instance, shall be deemed "**Permitted Exceptions**". Permitted Exceptions shall not include (x) any mechanic's lien or any monetary

lien filed against the Property (other than any mechanic's lien or any monetary lien which is caused by (or at the direction of) Buyer or any of its affiliates or representatives, which, in each such event, shall be deemed to be Permitted Exceptions) or (y) the lien of any mortgage of Seller encumbering the Property or any part thereof (collectively, "**Permitted Liens**"). At Closing, Seller shall be required to cure or remove all Permitted Liens (by payment, bond deposit or indemnity acceptable to Escrow Agent). Seller shall have no obligation to cure any Title Matter to which Buyer objects (the "**Title Objections**"). Within ten (10) business days following Seller's receipt of the Title Objections, Seller shall notify Buyer of any Title Objections which Seller elects not to remove or cure. Seller's failure to respond (or Seller's failure to elect to cure any such Title Objections) within said ten (10) business day period shall be deemed to be Seller's election not to cure any such Title Objections. In the event that Seller elects (or is deemed to elect) not to remove or cure any Title Objections, Buyer, as its sole and exclusive remedy, shall have the one-time right to terminate this Agreement upon written notice to Seller delivered no later than five (5) business days after Buyer's receipt (or deemed receipt) of Seller's notice (or deemed notice), upon which termination Buyer shall receive a refund of the Earnest Money and neither party shall have any further obligation hereunder, except as otherwise expressly set forth herein. If any matter not revealed in the Title Commitment is first discovered by Buyer or by the Escrow Agent and is added to the Title Commitment by the Escrow Agent after the Due Diligence Period but prior to Closing, and such new matter is not otherwise a Permitted Exception, then Buyer shall have until the earlier of (i) five (5) days after the Buyer's receipt of the updated, revised Title Commitment showing the new title exception, together with a legible copy of any such new matter, or (ii) three (3) business days prior to the date of Closing, to provide Seller with written notice of its objection to any such new title exception (a "**New Objection**"). Within ten (10) business days following Seller's receipt of the New Objection(s), Seller shall notify Buyer of any New Objections which Seller elects not to remove or cure. Seller's failure to respond (or Seller's failure to elect to cure any such New Objections) within said ten (10) business day period shall be deemed to be Seller's election not to cure any such New Objections. If Seller elects (or is deemed to elect) not to remove or cure any such New Objections or if Seller does not remove or cure such New Objection which Seller has agreed to remove prior to the date of Closing, then Buyer, as its sole and exclusive remedy, may terminate this Agreement, upon which termination Buyer shall receive a refund of the Earnest Money and neither party shall have any further obligation hereunder, except as otherwise expressly set forth herein. If Seller elects to attempt to cure any such Title Objections or New Objections, Seller shall have until the Closing Date to attempt to remove, satisfy or cure the same, and if Seller fails to cure said Title Objections or New Objections, Buyer shall have the right to terminate this Agreement, in which event the Earnest Money shall be returned by Buyer and the parties shall have no further obligations under this Agreement. Although Seller may elect in its sole and absolute discretion to cure or attempt to cure any one or more Title Objections or New Objections, Buyer acknowledges and agrees that Seller has no obligation to cure any Title Objections or New Objections. In any event, Buyer's failure to timely elect to terminate this Agreement pursuant to the foregoing shall be deemed to be Buyer's election to accept the conveyance subject to the Permitted Exceptions (without a reduction or the Purchase Price or any claim against Seller). As used in this Section 6(a), the term "cure" shall mean, as the case may be, any of the following, at Seller's election: removal of record, omitted as an exception to the Buyer's title policy issued upon Closing (the "**Title Policy**") (or deleted from the survey), or insured over by the Title Company.

(c) During the term of this Agreement, Buyer, its agents, contractors and designees (collectively, "**Buyer's Representatives**") shall have the right to enter the Property for the purposes of inspecting the Property, conducting non-invasive tests, and making surveys, mechanical and structural engineering studies, inspecting construction, and conducting any other investigations and inspections as Buyer may reasonably require to assess the condition and suitability of the Property; provided, however, that such activities by or on behalf of Buyer on the Property shall not damage the Property nor interfere with operations on the Property; and provided, further, however, that Buyer shall indemnify and hold Seller harmless from and against any and all claims or damages to the extent resulting from the activities of Buyer and/or Buyer's Representatives on the Property, and Buyer shall repair any and all damage caused, in whole

or in part, by Buyer and/or Buyer's Representatives, and return the Property to its condition prior to such damage, which obligation shall survive Closing or any termination of this Agreement. Notwithstanding the foregoing, Buyer's mere discovery of an existing condition on the Property during its due diligence shall not require Buyer to indemnify Seller as provided in this section. Buyer shall be permitted to make applications and inquiries to applicable government authorities regarding applicable zoning codes; provided, however, that Buyer shall not file or submit any applications or related materials which will remain binding on Seller or the Property or cannot be withdrawn by Seller in the event Closing should not occur, without Seller's prior written consent. Seller shall reasonably cooperate with the efforts of Buyer and Buyer's Representatives to inspect the Property and the Improvements. Notwithstanding the foregoing, Buyer shall not have the right to conduct an environmental Phase II examination without the express prior written consent of Seller, which may be granted or withheld in Seller's sole and absolute discretion. During the time period in which Buyer or Buyer's Representatives are accessing the Property, Buyer shall maintain, and shall cause Buyer's Representatives to maintain, at Buyer's expense, a policy of comprehensive general public liability insurance with a combined single limit of not less than \$1,000,000 per occurrence for bodily injury and property damage, insuring against any injuries or damages to persons or property that may result from or are related to Buyer's or Buyer's Representative's entry upon the Property and any Investigations or other activities conducted thereon. If requested by Seller, Buyer shall deliver, and shall cause Buyer's Representatives to deliver, certificates of insurance to Seller confirming compliance with the foregoing insurance requirements and listing Seller as an additional insured in respect of the insurance coverage. Upon signing this Agreement, Seller shall provide Buyer with the name of a contact person(s) for the purpose of arranging site visits. Buyer shall give Seller reasonable written notice (which in any event shall not be less than one (1) business day) before entering the Property (which notice shall identify the parties that Buyer intends to engage to enter on the Property), and Seller may have a representative present during any and all examinations, inspections and/or studies on the Property. Buyer shall have the unconditional right, for any reason or no reason, to terminate this Agreement by giving written notice thereof to Seller and the Escrow Agent prior to the expiration of the Due Diligence Period (*time being of the essence*), in which event this Agreement shall become null and void, Buyer shall receive a refund of the Earnest Money, and all rights, liabilities and obligations of the parties under this Agreement shall expire, except as otherwise expressly set forth herein. If Buyer fails to terminate the Agreement by giving written notice thereof to Seller and the Escrow Agent prior to the expiration of the Due Diligence Period, Buyer shall be deemed to be satisfied with the Property and the parties shall proceed to Closing, subject to the other terms and conditions of this Agreement.

7. Risk of Loss/Condemnation. Upon an occurrence of a casualty, condemnation or taking with respect to the Property, Seller shall notify Buyer in writing of such event after Seller obtains actual knowledge of such event. Until Closing, the risk of loss or damage to the Property, except as otherwise expressly provided herein, shall be borne by Seller. In the event all or any portion of the Property is damaged in any casualty or condemned or taken (or notice of any condemnation or taking is issued) so that: with respect to any casualty, if the cost to repair such casualty would exceed \$250,000 (as reasonably determined by Buyer), or (b) with respect to any condemnation, any Improvements or access to the Property or more than five percent (5%) of the Property is (or will be) condemned or taken (as reasonably determined by Buyer), then, Buyer may elect to terminate this Agreement by providing written notice of such termination to Seller within ten (10) business days after Buyer's receipt of notice of such condemnation, taking or damage, upon which termination the Earnest Money shall be returned to the Buyer and neither party hereto shall have any further rights, obligations or liabilities under this Agreement, except as otherwise expressly set forth herein. With respect to any condemnation or taking (of any notice thereof), if Buyer does not elect to cancel this Agreement as aforesaid, there shall be no abatement of the Purchase Price and Seller shall assign to Buyer at the Closing the rights of Seller to the awards, if any, for the condemnation or taking, and Buyer shall be entitled to receive and keep all such awards. With respect to a casualty, if Buyer does not elect to terminate this Agreement or does not have the right to terminate this Agreement as aforesaid, there shall be no abatement of the Purchase Price and Seller shall assign to Buyer

at the Closing the rights of Seller to the proceeds under Seller's insurance policies covering the Property with respect to such damage or destruction (or pay to Buyer any such proceeds received prior to Closing) and pay to Buyer (or credit to Buyer at Closing) one-half of the amount of any deductible with respect thereto, and Buyer shall be entitled to receive and keep any monies received from such insurance policies.

8. **Earnest Money Disbursement.** The Earnest Money shall be held by Escrow Agent, in trust, and disposed of only in accordance with the following provisions: If the Closing occurs, Escrow Agent shall deliver the Earnest Money to Seller and Buyer on the Closing Date to be applied as part payment of the Purchase Price as set forth in Section 1(d) above. Upon the expiration of the Due Diligence Period, the Earnest Money shall be non-refundable to Buyer except as expressly set forth in this Agreement. Subject to the foregoing, if for any reason the Closing does not occur, Escrow Agent shall deliver the Earnest Money to Seller or Buyer only upon receipt of a written demand therefor from such party, subject to the following provisions of this clause (a). Subject to the last two sentences of this clause (a), if for any reason the Closing does not occur and either party makes a written demand (the "**Demand**") upon Escrow Agent for payment of the Earnest Money, which request shall in all cases be accompanied by a good faith written explanation as to why such party believes it is entitled to the Earnest Money pursuant to the terms of this Agreement, Escrow Agent shall immediately give written notice to the other party of the Demand within one (1) business day after receipt of the Demand. If Escrow Agent does not receive a written objection from the other party to the proposed payment within five (5) business days after the giving of such notice by Escrow Agent, Escrow Agent is hereby authorized to make the payment set forth in the Demand. If Escrow Agent does receive such written objection within such period, Escrow Agent shall continue to hold such amount until otherwise directed by written instructions signed by Seller and Buyer or a final judgment of a court. Escrow Agent, however, shall have the right at any time to deposit the Earnest Money with the clerk of any Federal or State court having jurisdiction over the Property. If this Agreement is validly terminated by Buyer pursuant to any of Sections 6(a), 6(b) or 7 of this Agreement, then the Earnest Money shall be returned to Buyer.

(b) The parties acknowledge that Escrow Agent is acting solely at their request and for their convenience, that Escrow Agent shall not be deemed to be the agent of either of the parties, and that Escrow Agent shall not be liable to either of the parties for any action or omission on its part taken or made in good faith, and not in disregard of this Agreement, but shall be liable for its negligent acts and for any liabilities (including reasonable attorneys' fees, expenses and disbursements) incurred by Seller or Buyer resulting from Escrow Agent's mistake of law respecting Escrow Agent scope or nature of its duties. Escrow Agent has executed this Agreement in the place indicated on the signature page hereof in order to confirm that Escrow Agent shall hold the Earnest Money in escrow and shall disburse the Earnest Money pursuant to the provisions of this Section 8. Escrow Agent shall promptly notify Seller and Buyer upon Escrow Agent's receipt of the Earnest Money.

9. **Default.**

(a) IF BUYER MATERIALLY DEFAULTS IN ANY OF ITS OBLIGATIONS UNDER THIS AGREEMENT (INCLUDING, WITHOUT LIMITATION, FAILURE BY BUYER TO CONSUMMATE THIS SALE ON THE CLOSING DATE WHEN REQUIRED TO DO SO AS PROVIDED IN THIS AGREEMENT), THEN SELLER SHALL RETAIN THE EARNEST MONEY AS LIQUIDATED DAMAGES. THE PARTIES HAVE AGREED THAT SELLER'S ACTUAL DAMAGES, IN THE EVENT OF A BUYER DEFAULT UNDER THIS AGREEMENT, WOULD BE EXTREMELY DIFFICULT OR IMPRACTICABLE TO DETERMINE. AFTER NEGOTIATION, THE PARTIES HAVE AGREED THAT, CONSIDERING ALL THE CIRCUMSTANCES EXISTING ON THE DATE OF THIS AGREEMENT, THE AMOUNT OF THE EARNEST MONEY IS A REASONABLE ESTIMATE OF THE DAMAGES THAT SELLER WOULD INCUR IN SUCH EVENT. EACH PARTY SPECIFICALLY CONFIRMS THE ACCURACY OF THE STATEMENTS MADE ABOVE AND THE FACT THAT EACH PARTY WAS REPRESENTED BY COUNSEL WHO EXPLAINED, AT THE

TIME THIS AGREEMENT WAS MADE, THE CONSEQUENCES OF THIS LIQUIDATED DAMAGES PROVISION. SUCH LIQUIDATED AND AGREED DAMAGES ARE NOT INTENDED AS A FORFEITURE OR A PENALTY WITHIN THE MEANING OF APPLICABLE LAW. THE PARTIES HERETO FURTHER AGREE THAT THE FOREGOING IS NOT INTENDED TO LIMIT BUYER'S INDEMNITY OBLIGATIONS UNDER OTHER SECTIONS HEREOF, AND IN SUCH EVENT, SELLER SHALL BE ENTITLED TO RECOVER DAMAGES FOR SUCH OBLIGATIONS IN ADDITION TO RETENTION OF THE EARNEST MONEY.

(b) If Seller shall default in any material respect in the performance of Seller's obligations under this Agreement, then Buyer may, as its sole and exclusive remedy, either: (A) waive any unsatisfied conditions and proceed to Closing in accordance with the terms and provisions hereof; (B) terminate this Agreement by delivering written notice thereof to Seller no later than the Closing Date, and such termination shall otherwise release Seller and Buyer from any and all other rights, obligations and liability hereunder, except those which are specifically stated herein to survive any termination hereof; or (C) seek specific performance. Buyer shall bring an action to seek specific performance within ninety (90) days following the scheduled Closing Date. If specific performance is not available because of Seller's intentional act, then Seller shall reimburse Buyer for up to \$50,000 of Seller's out of pocket third-party due diligence costs.

10. **Closing.** The Closing shall consist of the execution and delivery of documents by Seller and Buyer, as set forth below, and delivery by Buyer to Seller of the Purchase Price in accordance with the terms of this Agreement. Seller shall deliver to Escrow Agent for the benefit of Buyer at Closing the following executed documents for the Property:

- (a) A Limited Warranty Deed in the form attached hereto as Exhibit C (the "**Deed**");
- (b) A settlement statement setting forth the Purchase Price, all prorations and other adjustments to be made pursuant to the terms hereof, and the funds required for Closing as contemplated hereunder;
- (c) All transfer tax statements, declarations and filings as may be necessary or appropriate for purposes of recordation of the Deed;
- (d) An owner's affidavit in the form attached hereto as Exhibit D.
- (e) A certificate pursuant to Section 1445 of the Internal Revenue Code of 1986, as amended, or the regulations issued pursuant thereto, certifying the non-foreign status of Seller; and
- (f) Such other instruments as are reasonably required by Escrow Agent to close the escrow and consummate the purchase of the Property in accordance with the terms hereof.

At Closing, Buyer shall instruct Escrow Agent to deliver the Earnest Money to Seller which shall be applied to the Purchase Price, shall deliver the balance of the Purchase Price to Seller and shall execute and deliver execution counterparts, as applicable, of the closing documents referenced above, including the Ohio Form DTE 100. The Closing shall be held through the mail by delivery of the closing documents to the Escrow Agent on or prior to the Closing or such other place or manner as the parties hereto may mutually agree.

11. **Representations by Seller.** For the purpose of inducing Buyer to enter into this Agreement and to consummate the sale and purchase of the Property in accordance herewith, Seller makes the following representations and warranties to Buyer as of the Effective Date and as of the Closing Date:

(a) Seller is duly organized (or formed), validly existing and in good standing under the laws of its state of organization, and to the extent required by law, the State in which the Property is located. Seller has the power and authority to execute and deliver this Agreement and all closing documents to be executed by Seller, and to perform all of Seller's obligations hereunder and thereunder. Neither the execution and delivery of this Agreement and all closing documents to be executed by Seller, nor the performance of the obligations of Seller hereunder or thereunder will result in the violation of any law or any provision of the organizational documents of Seller or will conflict with any order or decree of any court or governmental instrumentality of any nature by which Seller is bound; and

(b) Seller is not a "foreign person" within the meaning of Section 1445(f)(3) of the Internal Revenue Code, as amended.

(c) Seller is not, and is not acting, directly or indirectly, for or on behalf of, any person named by the United States Treasury Department as a Specifically Designated National and Blocked Person, or for or on behalf of any person designated in Executive Order 13224 as a person who commits, threatens to commit, or supports terrorism. Seller is not engaged in the transaction contemplated by this Agreement directly or indirectly on behalf of, or facilitating such transaction directly or indirectly on behalf of, any such person.

(d) Neither this Agreement nor the consummation of the transactions contemplated hereby is subject to any first right of refusal or other purchase right in favor of any other person or entity; and apart from this Agreement, Seller has not entered into any written agreements for the purchase or sale of the Property, or any interest therein which has not been terminated

(e) There are no occupancy rights, leases or tenancies affecting the Property which shall survive the Closing.

(f) Seller will provide Buyer with a list of all contracts (oral or written) presently affecting the Property and to which Seller is a party ("Contracts"). To Seller's knowledge, such Contracts are presently in full force and effect and have not been modified or amended except as disclosed by Seller. Seller has no actual knowledge or information of any default by either party to any Contracts. All such Contracts are all terminable and unless otherwise directed by Purchaser, Seller shall terminate all of the service Contracts effective on or before the date of Closing. Purchaser will not, by reason of entering into or closing under this Agreement, become subject to or bound by any Contract or other oral or written Contract or understanding that it has not specifically agreed in writing to accept

(g) The execution and delivery of this Agreement by Seller, the execution and delivery of every other document and instrument delivered pursuant to this Agreement by or on behalf of Seller, and the consummation of the transactions contemplated by this Agreement have been duly authorized and validly executed and delivered by Seller, and will not to Seller's knowledge (a) constitute or result in a material breach of or material default under any oral or written agreement to which Seller is a party or which affects the Property; (b) constitute or result in a material violation of any order, decree or injunction with respect to which Seller and/or the Property are bound; (c) cause or entitle any party to have a right to accelerate or declare a default under any oral or written agreement to which Seller is a party or which affects the Property; and/or (d) violate any provision of any municipal, state or federal law, statutory or otherwise, to which Seller or the Property may be subject

(h) To Seller's knowledge, there is no known pending or threatened litigation, arbitration, administrative action or examination, claim or demand relating to the Property.

(i) Seller has no knowledge and Seller has received no written notice of any pending or contemplated eminent domain, condemnation, or other governmental or quasi-governmental taking of any part or all of the Property.

(j) Seller has not received written notice of any public improvements that have been ordered to be made and/or that have not been previously assessed, for which assessments may be charged to the Property, and Seller has not received written notice of any special, general or other assessments pending, threatened against, or affecting the Property.

(k) o Seller's knowledge: (1) Seller has not generated, manufactured, stored or disposed of Hazardous Materials (other than de minimis amounts customarily and properly used in connection with the construction and maintenance of the Property) on or with respect to the Property in violation of applicable law and which are required by law to be remediated or removed; and (2) Seller has received no written notice from any federal, state, county or municipal authority alleging: (A) the existence of any Hazardous Materials at the Property in violation of any environmental laws with respect to the Property; or (B) any other environmental or Hazardous Materials issues applicable to the Property. As used herein, "Hazardous Materials" means any substance, chemical, waste or material that is or becomes regulated by any federal, state or local governmental authority because of its toxicity, infectiousness, radioactivity, explosiveness, ignitability, corrosiveness or reactivity, including, but without limitation, asbestos or asbestos containing material, toxic mold and fungus, the group of compounds known as polychlorinated biphenyls, flammable explosives, oil, petroleum or any refined petroleum product.

As used in this Agreement, "Seller's Knowledge" shall be deemed to mean, and shall be limited to, the actual (as distinguished from implied, imputed or constructive) knowledge of Chris Rammel, without any duty of inquiry or investigation, and shall not be construed to refer to the knowledge of any other officer, agent or employee of Seller or any affiliate thereof. The representations and warranties of Seller set forth in this Section 11 shall survive Closing for a period of six (6) months following the Closing Date.

12. **Representations by Buyer.** Buyer makes the following representations and warranties, to Buyer's Knowledge, to Seller as of the Effective Date and as of the Closing Date:

(a) Buyer is duly formed, validly existing and in good standing under the laws of its state of organization, and on the Closing Date, to the extent required by law, the State in which the Property is located is authorized to consummate the transaction set forth herein and fulfill all of its obligations hereunder and under all closing documents to be executed by Buyer, and has all necessary power and authority to execute and deliver this Agreement and all closing documents to be executed by Buyer, and to perform all of Buyer's obligations hereunder and thereunder.

(b) This Agreement and all closing documents to be executed by Buyer have been duly authorized by all requisite corporate or other required action on the part of Buyer and are the valid and legally binding obligation of Buyer, enforceable in accordance with their respective terms. There is no action, suit, arbitration, unsatisfied order or judgment, government investigation or proceeding pending against Buyer which, if adversely determined, could individually or in the aggregate materially interfere with the consummation of the transaction contemplated by this Agreement.

(c) Neither the execution and delivery of this Agreement and all closing documents to be executed by Buyer, nor the performance of the obligations of Buyer hereunder or thereunder will result in the violation of any law or any provision of the organizational documents of Buyer or will conflict with any order or decree of any court or governmental instrumentality of any nature by which Buyer is bound.

As used in this Agreement, "Buyer's Knowledge" shall be deemed to mean, and shall be limited to, the actual (as distinguished from implied, imputed or constructive) knowledge of

Joe Klein, without any duty or inquiry or investigation, and shall not be construed to refer to the knowledge of any other officer, agent, or employee of Buyer or any affiliate thereof. The representations and warranties of Buyer set forth in this Section 12 shall survive Closing for a period of six (6) months after the Closing Date.

13. **Conditions Precedent to Buyer's Obligations.** Buyer's obligation to pay the Purchase Price, and to accept title to the Property, shall be subject to the following conditions precedent on and as of the date of Closing:

(a) Seller shall deliver to Escrow Agent on or before the Closing the items set forth in Section 10 above, if and to the extent applicable; and

(b) The representations and warranties of Seller contained in this Agreement shall have been true when made and shall be true in all material respects at and as of the date of Closing as if such representations and warranties were made at and as of the Closing, and Seller shall have performed and complied in all material respects with all covenants, agreements and conditions required by this Agreement to be performed or complied with by Seller prior to or at the Closing.

(c) Buyer shall receive the Title Policy in the manner required under this Agreement.

14. **Conditions Precedent to Seller's Obligations.** Seller's obligation to deliver title to the Property shall be subject to the satisfaction of the following conditions precedent on and as of the date of Closing:

(a) Buyer shall deliver to Escrow Agent on the Closing Date the remainder of the Purchase Price, subject to adjustment of such amount pursuant to Section 4 hereof and all applicable documents to be delivered by Buyer in accordance with Section 10 above; and

(b) The representations and warranties of Buyer contained in this Agreement shall have been true when made and shall be true in all material respects at and as of the date of Closing as if such representations and warranties were made at and as of the Closing, and Buyer shall have performed and complied in all material respects with all covenants, agreements and conditions required by this Agreement to be performed or complied with by Buyer prior to or at the Closing.

15. **Notices.** Unless otherwise provided herein, all notices and other communications which may be or are required to be given or made by any party to the other in connection herewith shall be in writing and shall be deemed to have been properly given and received on the date: (a) delivered by electronic mail (e.g. e-mail), (b) delivered in person, (c) deposited in the United States mail, registered or certified, return receipt requested, or (d) deposited with a nationally recognized overnight courier, to the addresses set out in Section 1, or at such other addresses as specified by written notice delivered in accordance herewith. Notwithstanding the foregoing, Seller and Buyer agree that notice may be given on behalf of each party by the counsel for each party and notice by such counsel in accordance with this Section 15 shall constitute notice under this Agreement.

16. **Seller Covenants.**

(a) From the Effective Date hereof until the Closing Date or earlier termination of this Agreement, Seller shall operate and maintain the Property in a manner generally consistent with the manner in which Seller has operated and maintained the Property prior to the date hereof; provided, however, that Seller shall have no obligation whatsoever to make any capital expenditures or alterations to the Property.

(b) From the Effective Date hereof until the Closing Date or earlier termination of this Agreement, Seller shall not enter into any new lease of all or any portion of the Property, without Buyer's prior consent in each instance, which consent shall not be unreasonably withheld, conditioned or delayed.

(c) Seller does not guarantee or undertake that any of the service contracts will be in effect as of the Closing. Seller reserves the right to modify or terminate any existing service contract, or enter into new service contracts with respect to the Property, provided that such existing service contract (or such new service contract, as the case may be) is terminable on not more than thirty (30) days prior notice without payment of any premium or penalty (unless Seller, in its sole discretion, agrees to pay the premium or penalty).

(d) From the Effective Date hereof until the Closing Date or earlier termination of this Agreement, Seller shall not enter into any agreement to sell, provide any option to purchase, right of first refusal, or similar right to the Property.

17. **Performance on Business Days.** A "business day" is a day which is not a Saturday, Sunday or legal holiday recognized by the federal government of the United States of America. Furthermore, if any date upon which or by which action is required under this Agreement is not a business day, then the date for such action shall be extended to the first day that is after such date and is a business day. When calculating the period of time before which, within which or following which any act is to be done or step taken pursuant to this Agreement, the date that is the reference date in calculating such period shall be excluded. If the last day of such period is a non-business day, the period in question shall end on the next succeeding business day.

18. **Entire Agreement.** This Agreement constitutes the sole and entire agreement among the parties hereto and no modification of this Agreement shall be binding unless in writing and signed by all parties hereto. No prior agreement or understanding pertaining to the subject matter hereof (including, without limitation, any letter of intent executed prior to this Agreement) shall be valid or of any force or effect from and after the date hereof.

19. **Severability.** If any provision of this Agreement, or the application thereof to any person or circumstance, shall be invalid or unenforceable, at any time or to any extent, then the remainder of this Agreement, or the application of such provision to persons or circumstances other than those as to which it is invalid or unenforceable, shall not be affected thereby. Each provision of this Agreement shall be valid and enforced to the fullest extent permitted by law.

20. **No Representations or Warranties/As-Is Release.**

(a) Buyer hereby acknowledges, understands and agrees that it has an opportunity to inspect the Property as set forth in Section 6 herein, and except as expressly set forth in this Agreement, the Property shall be conveyed at Closing to Buyer in "as-is" condition with no representation or warranties whatsoever.

(b) Buyer acknowledges and agrees that the Property shall be sold, and Buyer shall accept possession of the Property on the Closing Date "AS IS – WHERE IS, WITH ALL FAULTS," with no right of setoff or reduction in the Purchase Price, and Buyer shall assume the risk that adverse physical, environmental, economic or legal conditions may not have been revealed by Buyer's investigations. Except as expressly set forth in Section 11, neither Seller, its employees, representatives, agents, counsel, broker, sales agent, nor any partner, member, officer, director, employee, trustee, shareholder, principal, parent, subsidiary, affiliate, agent or attorney of Seller, its counsel, broker or sales agent, nor any other party related in any way to any of the foregoing (collectively, "**Seller's Representatives**") have or shall be deemed to have made any representations or warranties, express or implied, regarding the Property or any matters

affecting the Property, including without limitation the physical condition of the Property, title to or boundaries of the Property, pest control, soil conditions, the presence or absence, location or scope of any hazardous materials in, at, or under the Property, compliance with building, health, safety, land use or zoning Laws, other engineering characteristics, traffic patterns and all other information pertaining to the Property.

(c) Buyer acknowledges that prior to the Closing, Buyer is being afforded the opportunity for full and complete investigations, examinations and inspections of the Property. Buyer acknowledges and agrees that (i) all information and documents in any way relating to the Property furnished to, or otherwise made available for review by Buyer (the "**Property Information**") may have been prepared by third parties and may not be the work product of Seller and/or Seller's Representatives; (ii) neither Seller nor any of Seller's Representatives has made any independent investigation or verification of, or has any knowledge of, the accuracy or completeness of, the Property Information; and (iii) Buyer is relying solely on its own investigations, examinations and inspections of the Property and is not relying in any way on the Property Information furnished by Brokers, Seller or any of Seller's Representatives (it being acknowledged and agreed that Buyer is not so entitled to rely upon such Property Information). In furtherance of the foregoing, except as expressly stated herein, Seller makes no representation or warranty as to the truth, accuracy or completeness of any materials, data or information delivered by Seller to Buyer in connection with the transaction contemplated hereby.

(d) Except for any claim for breach of representations and warranties of Seller during the applicable survival period, Buyer or anyone claiming by, through or under Buyer hereby fully and irrevocably releases Seller and Seller's Representatives from any and all claims that it may now have or hereafter acquire against Seller or Seller's Representatives for any cost, loss, liability, damage, expense, action or cause of action, whether foreseen or unforeseen, arising from or related to any structural, engineering or environmental condition at the Property, including without limitation the presence or absence, location or scope of any hazardous materials in, at, or under the Property (whether patent, latent or otherwise) as of the date of Closing. Buyer further acknowledges and agrees that this release shall be given full force and effect according to each of its expressed terms and provisions, including but not limited to those relating to unknown and suspected claims, damages and causes of action.

21. **Applicable Law.** This Agreement shall be construed under the laws of the State of Ohio, without giving effect to any state's conflict of laws principles.

22. **Tax-Deferred Exchange.** Buyer and Seller respectively acknowledge that the purchase and sale of the Property contemplated hereby may be part of a separate exchange (an "**Exchange**") being made by each party pursuant to Section 1031 of the Internal Revenue Code of 1986, as amended, and the regulations promulgated with respect thereto. In the event that either party (the "**Exchanging Party**") desires to effectuate such an exchange, then the other party (the "**Non-Exchanging Party**") agrees to cooperate fully with the Exchanging Party in order that the Exchanging Party may effectuate such an exchange; provided, however, that with respect to such Exchange (a) all additional costs, fees and expenses related thereto shall be the sole responsibility of, and borne by, the Exchanging Party; (b) the Non-Exchanging Party shall incur no additional liability as a result of such exchange; (c) the contemplated exchange shall not delay any of the time periods or other obligations of the Exchanging Party hereby, and without limiting the foregoing, the scheduled date for Closing shall not be delayed or adversely affected by reason of the Exchange; (d) the accomplishment of the Exchange shall not be a condition precedent or condition subsequent to the Exchanging Party's obligations under the Agreement; and (e) the Non-Exchanging Party shall not be required to hold title to any land other than the Property for purposes of the Exchange. The Exchanging Party agrees to defend, indemnify and hold the Non-Exchanging Party harmless from any and all liability, damage or cost, including, without limitation, reasonable attorney's fees that may result from Non-Exchanging Party's cooperation with the Exchange. The Non-Exchanging Party shall not, by reason of the Exchange, (i) have its rights under this Agreement, including, without limitation,

any representations, warranties and covenants made by the Exchanging Party in this Agreement (including but not limited to any warranties of title, which, if Seller is the Exchanging Party, shall remain warranties of Seller), or in any of the closing documents (including but not limited to any warranties of title, which, if Seller is the Exchanging Party, shall remain warranties of Seller) contemplated hereby, adversely affected or diminished in any manner, or (ii) be responsible for compliance with or deemed to have warranted to the Exchanging Party that the Exchange complies with Section 1031 of the Code.

23. **Brokers' Commissions.** Buyer and Seller each hereby represent to the other party hereto that, except for the Brokers listed herein, there are no other brokers involved or that have a right to proceeds in this transaction. Seller shall be responsible for payment of commissions to the Brokers pursuant to a separate written agreement executed by Seller, if any. Seller and Buyer each hereby agree to indemnify and hold the other harmless from all loss, cost, damage or expense (including reasonable attorneys' fees at both trial and appellate levels) incurred by the other as a result of any claim arising out of the acts of the indemnifying party (or others on its behalf) for a commission, finder's fee or similar compensation made by any broker, finder or any party who claims to have dealt with such party (other than Brokers). The representations, warranties and indemnity obligations contained in this section shall survive the Closing or the earlier termination of this Agreement.

24. **Assignment.** Buyer may assign this Agreement, in whole or in part, to an affiliate of Buyer without the consent of Seller, and to any other person or entity only with the prior written consent of Seller, which consent shall not be unreasonably withheld, conditioned or delayed. Any such assignment may be made at any time, including multiple successive assignments. Upon any assignment, the assignee shall assume Buyer's obligations hereunder. Any assignment shall include all of Buyer's rights under this Agreement, including, without limitation, Buyer's rights to the Earnest Money. Buyer shall provide Seller with written notice of any assignment. Seller may not assign its interest in this Agreement without the prior written consent of Buyer.

25. **Attorneys' Fees.** In any action between Buyer and Seller as a result of failure to perform or a default under this Agreement, the prevailing party shall be entitled to recover from the other party, and the other party shall pay to the prevailing party, the prevailing party's attorneys' fees and disbursements and court costs incurred in such action. The terms of this Section 25 shall survive the Closing or earlier termination of this Agreement.

26. **Time of the Essence.** Time is of the essence with respect to each of Buyer's and Seller's obligations hereunder.

27. **Counterparts.** This Agreement may be executed in one or more counterparts, all of which shall be considered one and the same agreement, and shall become a binding agreement when one or more counterparts have been signed by each of the parties and delivered to the other party. Signatures on this Agreement which are transmitted electronically (e.g., .pdf) shall be valid for all purposes, however, any party shall deliver an original signature on this Agreement to the other party upon request. **Anti-Terrorism.** Neither Buyer or Seller, nor any of their affiliates, are in violation of any Anti-Terrorism Law (as hereinafter defined) or engages in or conspires to engage in any transaction that evades or avoids, or has the purpose of evading or avoiding, or attempts to violate, any of the prohibitions set forth in any Anti-Terrorism Law. **"Anti-Terrorism Laws"** shall mean any laws relating to terrorism or money laundering, including: Executive Order No. 13224; the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, Public Law 107-56, as the same has been, or may hereafter be, renewed, extended, amended or replaced; the applicable laws comprising or implementing the Bank Secrecy Act; and the applicable laws administered by the United States Treasury Department's Office of Foreign Asset Control (as any of the foregoing may from time to time be amended, renewed, extended, or replaced).

29. **Intentionally Omitted.**

30. **Confidentiality.**

(a) Buyer agrees that neither it nor Buyer's Representatives shall at any time or in any manner, either directly or indirectly, divulge, disclose or communicate to any person, entity or association any other knowledge or information acquired by Buyer or Buyer's Representatives from Seller or by Buyer's own inspections and investigations, other than matters that were in the public domain at the time of receipt by Buyer, provided that Buyer may disclose such terms of this Agreement and its reports, studies, documents and other matters generated by it as Buyer deems necessary or desirable to Buyer's attorneys, accountants, financial advisors, investors and lenders, in connection with Buyer's investigation of the Property and/or purchase of the Property, provided that the parties to whom such information is disclosed are informed of the confidential nature thereof and agree to keep the same confidential in accordance with this Agreement.

(b) Buyer acknowledges that damages alone may be an inadequate remedy for any breach by it or Buyer's Representatives of the terms of this Section 30 and agrees that, in addition to any other remedies that Seller may have, Seller shall be entitled to injunctive relief in any court of competent jurisdiction against any breach of this Section 30.

31. **No Financing Contingency.** Buyer expressly acknowledges and agrees that Buyer's obligations under this Agreement are not in any way conditioned upon or qualified by Buyer's ability to obtain financing of any type or nature whatsoever (i.e., whether by way of debt financing, equity investment, or otherwise) to consummate the transaction contemplated by this Agreement.

32. **Further Assurances.** Each party agrees that it will without further consideration execute and deliver such other documents and take such other action, whether prior or subsequent to Closing, as may be reasonably requested by the other party to consummate more effectively the purposes or subject matter of this Agreement (but without expanding the obligations or liability of either party hereunder in any material manner). Without limiting the generality of the foregoing, Buyer shall, if requested by Seller, execute acknowledgments of receipt with respect to any materials delivered by Seller to Buyer with respect to the Property. The provisions of this Section 32 shall survive Closing.

33. **No Third Party Beneficiary.** The provisions of this Agreement and of the documents to be executed and delivered at Closing are and will be for the benefit of Seller and Buyer only and are not for the benefit of any third party (including, without limitation, Title Company or Brokers), and accordingly, no third party shall have the right to enforce the provisions of this Agreement or of the documents to be executed and delivered at Closing. The provisions of this Section 33 shall survive the closing of the transaction contemplated by this Agreement.

34. **Calculation of Time Periods.** Unless otherwise specified, in computing any period of time described in this Agreement, the day of the act or event after which the designated period of time begins to run is not to be included and the last day of the period so computed is to be included, unless such last day is a Saturday, Sunday or legal holiday under the laws of the state in which the Property is located, in which event the period shall run until the end of the next day which is neither a Saturday, Sunday or legal holiday. The final day of any such period shall be deemed to end at 5 p.m., local time in the jurisdiction where the Property is located.

35. **Successors and Assigns.** The terms and provisions of this Agreement are to apply to and bind the successors and permitted assigns of the parties hereto; provided, however, that none of the representations and warranties made by Seller hereunder shall inure to the benefit of any person that may succeed to Buyer's interest in the Property or this Agreement after the Closing Date.

36. **Waiver of Jury; Venue.** SELLER AND BUYER HEREBY KNOWINGLY, VOLUNTARILY, INTENTIONALLY, UNCONDITIONALLY AND IRREVOCABLY WAIVE ANY RIGHT EACH MAY HAVE TO TRIAL BY JURY IN ANY ACTION, PROCEEDING OR COUNTERCLAIM (WHETHER ARISING IN TORT OR CONTRACT) BROUGHT BY EITHER AGAINST THE OTHER ON ANY MATTER ARISING OUT OF OR IN ANY WAY CONNECTED WITH THIS AGREEMENT OR ANY OTHER DOCUMENT EXECUTED AND DELIVERED BY A PARTY IN CONNECTION HERewith (INCLUDING ANY ACTION TO RESCIND OR CANCEL THIS AGREEMENT WAS FRAUDULENTLY INDUCED OR IS OTHERWISE VOID OR VOIDABLE). BUYER AND SELLER EACH HEREBY IRREVOCABLY SUBMITS TO THE JURISDICTION OF ANY STATE OR FEDERAL COURT SITTING IN ALLEN COUNTY, STATE OF OHIO, OVER ANY SUIT, ACTION OR PROCEEDING ARISING OUT OF OR RELATING TO THIS AGREEMENT. SELLER MAY, IN SELLER'S SOLE DISCRETION, ELECT THE STATE OF OHIO, ALLEN COUNTY, OR THE UNITED STATES OF AMERICA, FEDERAL DISTRICT COURT HAVING JURISDICTION OVER ALLEN COUNTY, STATE OF OHIO, AS THE VENUE OF ANY SUCH SUIT, ACTION OR PROCEEDING. BUYER HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY LAW, ANY OBJECTION IT MAY NOW OR HEREAFTER HAVE TO SUCH VENUE AS BEING AN INCONVENIENT FORUM. THE FOREGOING SHALL NOT, HOWEVER, HAVE THE EFFECT OF PROHIBITING SELLER FROM BRINGING AN ACTION AGAINST BUYER ARISING OUT OF THIS AGREEMENT IN ANY OTHER COURT OR VENUE. BUYER AND SELLER AGREE THAT THE PROVISIONS OF THIS SECTION 39 SHALL SURVIVE THE CLOSING OF THE TRANSACTION CONTEMPLATED BY THIS AGREEMENT.

[SIGNATURES APPEAR ON THE FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the Effective Date.

SELLER:

DAYTON HEIDELBERG DISTRIBUTING CO., LLC,
a Delaware limited liability company

By: Jason Volker
Jason Volker (Jul 27, 2026 18:54:33 EDT)
Name: Jason Volker
Title: Senior Vice President of Finance
Date: 27/07/2026

BUYER:

NICKOLAS, LLC
An Ohio limited liability company

By: David J. Feldman
David J. Feldman (Jul 28, 2026 12:57:03 EDT)
Name: David J Feldman
Title: CBO
Date: 28/07/2026

Acknowledgment:

The undersigned hereby acknowledges receipt of the Earnest Money Deposit referenced above and agrees to hold the same in accordance with the terms of this Agreement.

ESCROW AGENT:



By: _____
Name: _____
Title: _____
Date: _____

EXHIBITS

- Exhibit A - Legal Description of Real Property
- Exhibit B - Excluded Property
- Exhibit C - Form of Limited Warranty Deed
- Exhibit D - Form of Owner's Affidavit

EXHIBIT A

LEGAL DESCRIPTION OF REAL PROPERTY

PARCEL 1:

Situated in the Township of Perry, County of Allen and State of Ohio:

Lot #25901 and 160 feet off the entire west side of Lot #25902 in Lima Industrial Park No. 1, Perry Township, Allen County, Ohio the plat of which is recorded in Allen County, Ohio Plat Book 12, page 72-74.

PPN: 47-1700-03-006.000

PARCEL 2:

Situated in the Township of Perry, County of Allen, and State of Ohio, to-wit:

Being a parcel of land situate in the Southwest quarter of Section 17, T-4-S, R-7-E, Perry Township, Allen County, Ohio, more particularly described as follows:

Commencing at the Southwest corner of said Southwest quarter; thence North, 1061.50 feet with the West line of said Southwest quarter (centerline of S.R. 65); thence S 89°57'22" E, 310.00 feet with the North line of Lima Industrial Park No. 1, to an iron pipe at the PLACE OF BEGINNING; thence N 00°00'00" E, 320.00 feet, to an iron pipe (set); thence S 89°57'22" E, 532.54 feet to an iron pipe; thence Southeasterly on a curve to the right an arc distance of 78.50 feet to an iron pipe (said curve having a radius of 50 feet and a chord of 70.68 feet); thence S 00°00'00" W, 270.04 feet to an iron pipe at the Northeast corner of Lot No. 25903 in said Lima Industrial Park No. 1; thence N 89°57'22" W, 582.50 feet with the North line of said Lima Industrial Park No. 1, and the PLACE OF BEGINNING, containing 185,863 square feet or 4.267 acres more or less and subject to all legal highways and other easements and restrictions of record.

PPN: 47-1700-03-005.003

EXHIBIT B

EXCLUDED PROPERTY

[PLEASE INSERT]

EXHIBIT C

[NOTE: MARGINS TO BE UPDATED]

FORM OF LIMITED WARRANTY DEED

[Subject to Title Company Review]

KNOW ALL PERSONS BY THESE PRESENTS, that as of the ____ day of _____, 20____, Dayton Heidelberg Distributing Co., LLC, a Delaware limited liability company ("***Grantor***"), for valuable consideration paid, grants, with limited warranty covenants, to _____, a(n) _____ ("***Grantee***"), whose tax mailing address is: _____, that certain real property in the City of Cincinnati, County of Hamilton, State of Ohio described on Exhibit A attached hereto and made a part hereof, together with the improvements, other buildings and fixtures thereon and the hereditaments and appurtenances thereunto belonging (collectively, the "***Property***").

Prior Instrument Reference: _____

Parcel Number: _____

The Property is being conveyed subject to: (i) all real estate taxes and assessments, (ii) all governmental laws, rules, regulations and zoning and building ordinances, (iii) all public and private utility easements and public and private rights of ways, (iv) any and all easements, right of ways, covenants, conditions, restrictions and or other matters of record, (v) liens or encumbrances or other matters created by Grantee's or Grantee's representatives actions or omissions, and (vi) any and all matters that would be disclosed by a true and accurate survey of the Property (the "**Permitted Exceptions**").

[SIGNATURE ON THE FOLLOWING PAGE]

C-2

EXHIBIT D

FORM OF TITLE AFFIDAVIT

[Subject to Title Company Review]

The undersigned ("Affiant"), being duly sworn according to law, deposes and states to such Affiant's actual knowledge, without investigation or the duty to investigate, that effective as of _____, 20____:

1. _____, a(n) _____ (the "Owner") is the owner of all that certain property which is described on Exhibit A, attached hereto and made a part hereof ("the Property").
2. *The Owner's enjoyment of the Property has been peaceful and undisturbed and the title to the Property has never been disputed or questioned, nor does the undersigned have actual knowledge of any facts by reason of which title to, or possession of the Property might be disputed or questioned, or by reason of which any claim to the Property or any portion thereof might be adversely asserted.*
3. *There are no tenancies, leases, parties in possession or other occupancies of the Property, other than the Owner and except for rights of parties under reservations, easements, and other instruments of record.*
4. *There are not any real estate taxes and/or assessments affecting the Property other than those of record.*
5. *Affiant has received no written notice of any violation of any covenants, conditions or restrictions, if any, affecting the Property.*
6. *There are no unpaid bills or claims for labor or services performed or materials furnished or delivered at the Owner's request during the last six (6) months for alterations, repair, work, or new construction on the Property.*
7. *The Owner is not party to any contracts for the making of repairs or improvements on the Property which would survive closing.*
8. *No proceeding in bankruptcy has ever been instituted by or against the Owner, nor has the Owner made any assignment for the benefit of creditors.*
9. *Affiant has received no written notice of any action or proceeding relating to the Property in any state or federal court in the United States, except as may be set forth of record.*

[SIGNATURES FOLLOW]

By: _____
Name: _____
Its: _____

The forgoing affidavit was subscribed, sworn to and acknowledged before me by this _____ day of _____, 20____ by _____ as _____ of _____, a(n) _____, on behalf of the company.

Notary Public _____

My commission expires: _____

EXHIBIT A
TO OWNER'S AFFIDAVIT
Property Description

PARCEL 1:

Situated in the Township of Perry, County of Allen and State of Ohio:

Lot #25901 and 160 feet off the entire west side of Lot #25902 in Lima Industrial Park No. 1, Perry Township, Allen County, Ohio the plat of which is recorded in Allen County, Ohio Plat Book 12, page 72-74.

PPN: 47-1700-03-006.000

PARCEL 2:

Situated in the Township of Perry, County of Allen, and State of Ohio, to-wit:

Being a parcel of land situate in the Southwest quarter of Section 17, T-4-S, R-7-E, Perry Township, Allen County, Ohio, more particularly described as follows:

Commencing at the Southwest corner of said Southwest quarter; thence North, 1061.50 feet with the West line of said Southwest quarter (centerline of S.R. 65); thence S 89°57'22" E, 310.00 feet with the North line of Lima Industrial Park No. 1, to an iron pipe at the PLACE OF BEGINNING; thence N 00°00'00" E, 320.00 feet, to an iron pipe (set); thence S 89°57'22" E, 532.54 feet to an iron pipe; thence Southeasterly on a curve to the right an arc distance of 78.50 feet to an iron pipe (said curve having a radius of 50 feet and a chord of 70.68 feet); thence S 00°00'00" W, 270.04 feet to an iron pipe at the Northeast corner of Lot No. 25903 in said Lima Industrial Park No. 1; thence N 89°57'22" W, 582.50 feet with the North line of said Lima Industrial Park No. 1, and the PLACE OF BEGINNING, containing 185,863 square feet or 4.267 acres more or less and subject to all legal highways and other easements and restrictions of record.

PPN: 47-1700-03-005.003

PSA - 3535 St Johns Rd. Lima - 2026.07.27 - CLEAN

Final Audit Report

2026-07-28

Created:	2026-07-27
By:	Kelly Bright (kelly.bright@kbcadvisors.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAA0dbZw4qyrGqXw4DDADkpW-0jyf7hKCJ

"PSA - 3535 St Johns Rd. Lima - 2026.07.27 - CLEAN" History

-  Document created by Kelly Bright (kelly.bright@kbcadvisors.com)
2026-07-27 - 9:02:00 PM GMT
-  Document emailed to Jason Volker (jason.volker@heidelbergdistributing.com) for signature
2026-07-27 - 9:02:06 PM GMT
-  Document emailed to Dave Feldman (dave@nickolas.com) for signature
2026-07-27 - 9:02:06 PM GMT
-  Email viewed by Jason Volker (jason.volker@heidelbergdistributing.com)
2026-07-27 - 9:03:10 PM GMT
-  Document e-signed by Jason Volker (jason.volker@heidelbergdistributing.com)
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